

holding of the meeting and the hour appointed for the close of the poll.

3. After the close of the poll the votes shall be scrutinised and counted in one place by the presiding officer in the presence of such of the candidates for election, or persons deputed to attend on their behalf, as desire to be present.

4. Any voter shall be entitled to ascertain, by inquiry of the presiding officer, within seven days of the declaration of the result, whether his vote has been allowed or not, and a notice that voters are so entitled shall be appended to all notices announcing the result of the election.

FORM OF PAROCHIAL VOTING PAPER IN CASE
OF A POLL.

(A similar form of voting paper may be used at the annual meeting, if desired, in cases where no poll is demanded.)

I *(Full Christian name and surname)*.....

of *(Address)*

hereby give to the candidates upon the list overleaf [*or upon the accompanying numbered voting paper*] the votes which I have placed opposite to their names.

Signed.....

Date.....

NOTE.—Each voter has as many votes as there are seats to be filled, but may not give more than three votes to any one candidate.

No. 3.

A MEASURE passed by the National Assembly
of the Church of England.

To amend the Ecclesiastical Dilapidations Measure,
1923. [10th May 1929.]

Reports.

1. The following paragraphs shall be substituted for paragraphs (i) to (vi) inclusive of subsection (1) of section eighteen of the Ecclesiastical Dilapidations Measure, 1923 (in this Measure referred to as the “principal Measure”):—

“ (i) whether any and, if so, what immediate repairs are needed, specifying the same in detail together with their estimated cost;

- (ii) except in respect of dilapidations caused by the deliberate action or gross neglect of an incumbent, within what time not exceeding twelve months such immediate repairs as are needed should be carried out;
- (iii) what sum will, in his opinion and upon the assumption that such immediate repairs as are needed will be duly carried out, be required to meet the probable cost of the repairs (in this Measure referred to as "the quinquennial repairs") which will require to be carried out during the five years immediately succeeding the date of his report;
- (iv) what sum, if any, in addition to the sums respectively required to meet the cost of such immediate repairs as are needed and the quinquennial repairs respectively, will be required to meet the probable cost of any future repairs (in this Measure referred to as "deferred repairs") for the carrying out of which during a period exceeding five years from the date of his report it is, in his opinion, desirable to provide a fund;
- (v) the general character of any deferred repairs to which his report relates, the reasons for their classification as such, and within what time they should be carried out;
- (vi) what sum, in his opinion, will be adequate to reinstate each of such buildings in the event of its being destroyed by fire; and, if the Diocesan Dilapidations Board shall so require;
- (vii) whether any and, if so, which of such buildings is in his opinion unsuitable to the needs of the benefice, and what sum would, in his opinion, be required to provide a building adequate to the needs of the benefice in the place of any unsuitable building."

2. In any case where a surveyor has made a report to a Diocesan Dilapidations Board under the provisions of section eighteen of the principal Measure, and at the date on which such report is made and for a period of

Reports and
objections
during
vacancies.

three months thereafter the benefice to the buildings of which the report relates is vacant—

- (i) the provision of subsection (2) of the said section requiring a copy of such report to be sent to the incumbent of the benefice, and the consequential provisions of subsection (3) of the said section, so far as they relate to such incumbent, shall not have effect;
- (ii) an incumbent instituted, collated or licensed to the benefice after the expiration of the said period of three months shall not have any right of objecting to the report under section twenty of the principal Measure; and
- (iii) the Board may exercise the power of confirming the report conferred on the Board by section twenty-one of the principal Measure at any time after the expiration of the said period of three months, or so soon as the Board shall have determined upon every objection raised by any person entitled to object to the report, whichever shall last happen.

Order.

3. The following subsections shall be substituted for subsections (2) and (3) of section twenty-one of the principal Measure :—

“(2) The order of the Board so made shall state the estimated cost of the immediate repairs, the time within which such repairs are to be carried out, and the name of any person who under the provisions of this Measure is liable to make any payment to the Central Authority in respect of such repairs or any part thereof, and in the case of a first inspection shall require payment of such estimated cost from any person from whom such payment is due.”

“(3) When the buildings of a benefice protected by a certificate under section forty-six or fifty of the Ecclesiastical Dilapidations Act, 1871, shall be inspected on the occasion of a vacancy or of a sequestration, the Board may include as part of the estimated cost of the quinquennial repairs the estimated cost of the immediate repairs, deducting from such estimated cost whatever

sum (if any) may have been provided by a grant under section forty-one or section forty-four of this Measure, or by a loan by the Central Authority under section thirty-five of this Measure, or by any other contribution towards defraying such cost."

4. The provisions of section twenty-two of the principal Measure relating to payments to the Central Authority during sequestration shall not apply in any case where the sequestration has issued upon the avoidance of a benefice.

Payment by
sequestrator.

5. In any case where a Diocesan Dilapidations Board is of opinion that a capital sum, less than the sum stated in a report made to the Board by a surveyor under section eighteen of the principal Measure to be adequate to reinstate a building in the event of its being destroyed by fire, will be sufficient to provide in the place of the building if so destroyed a building adequate to the needs of the benefice, the Board shall have power in the order confirming the report to determine that the building shall be insured for any sum which is not less than such capital sum and not greater than the sum stated in such report to be adequate to reinstate the building in question, and in any case where the Board has so determined—

Ordinary
assessments
(insurance
rate).

- (i) the insurance rate provided for by the principal Measure shall in respect of such building be fixed upon the basis of the determination of the Board; and
- (ii) the provisions of the principal Measure relating to reinstatement of buildings destroyed by fire shall in respect of such building be construed as referring to the provision of a building adequate to the needs of the benefice.

6. The following subsection shall be substituted for subsection (5) of section twenty-five of the principal Measure :—

Payments
under an
ordinary
assessment.

"(5) When a benefice in respect of which an ordinary or long assessment has been made shall become vacant, the Central Authority shall apportion the next annual payment required to be made by the assessment including any insurance rate which forms part thereof upon the footing that the liability for the same accrues from day to day

during the twelve months (or other period substituted under this Measure for a period of twelve months) ending on the day on which the same is due and that the outgoing incumbent or his estate is liable for such part thereof as shall be apportioned to the period before he vacated his benefice and such part of such annual payment shall be a debt due from such incumbent or his representatives to the Central Authority and recoverable at law."

Variation of
ordinary or
long assess-
ment.

7. The following subsection shall be substituted for subsection (3) of section twenty-seven of the principal Measure :—

"(3) If it shall appear to the Board that for any of the reasons mentioned in subsection (1) of this section it is necessary or desirable to vary an ordinary or long assessment but that no report from the surveyor is required—

- (i) the Board may frame such draft order as the case may require;
- (ii) a copy of such draft order shall be sent to any person responsible as aforesaid, and generally the procedure laid down by the foregoing provisions of this section and of sections twenty and twenty-one of this Measure shall be followed with the substitution of the draft order for the surveyor's report; and
- (iii) upon such procedure being brought to a conclusion the Board may make an order confirming the draft order either with or without variation as the case may require."

Repair
account.

8.—(1) The following section shall be substituted for section twenty-nine of the principal Measure :—

"29. The repair rate paid in respect of a benefice shall be placed by the Central Authority to the credit of an account to be called the ' Repair account of the benefice of _____,' and they shall allow interest thereon at such rate and on such terms and conditions as they may from time to time determine, and credit the same to the account."

(2) Moneys standing under the provisions of the principal Measure to the credit of an ordinary repair account shall be transferred to the corresponding repair account, and all references in the principal Measure to an ordinary repair account shall be construed as references to a repair account.

9.—(1) The following section shall be substituted for section thirty of the principal Measure :—

Deferred
repair
account.

“ 30. Any sums paid to or lent or granted by the Central Authority in respect of the deferred repairs of the buildings of a benefice shall be placed by the Central Authority to the credit of an account to be called the ‘ Deferred repair account of the benefice of _____,’ and they shall allow interest thereon at such rate and on such terms and conditions as they may from time to time determine, and credit the same to the account.”

(2) Subject to the provisions of this section moneys standing under the provisions of the principal Measure to the credit of a structural repair account shall be transferred to the corresponding deferred repair account, and references in the principal Measure to a structural repair account shall be construed as references to a deferred repair account.

(3) The Central Authority shall have power, where circumstances so require, to direct that moneys standing to the credit of the deferred repair account of a benefice shall be transferred to the repair account of the same benefice.

10.—(1) Subject to the provisions of this section, in any case where for the purpose of discharging the duty of executing repairs imposed on incumbents by section thirty-one of the principal Measure, an incumbent has entered into any contract for the execution of any repairs and has vacated his benefice before such contract has been fully carried into effect, such outgoing incumbent shall during a period of three months after he has vacated his benefice and during such further period (if any) as the Board may allow be entitled to carry out such repairs and shall have all necessary rights of entry for that purpose.

Execution
of repairs.

(2) In any case where an outgoing incumbent exercises the right conferred by the first subsection of this section—

- (i) such outgoing incumbent shall, for the purpose of countersigning the certificate of the surveyor under subsection (2) of section thirty-two of the principal Measure, or under section eleven of this Measure, be deemed to be the incumbent of the benefice; and
- (ii) the incoming incumbent shall so long as such outgoing incumbent continues to be entitled to carry out such repairs not be responsible for the carrying out of the same.

(3) The foregoing provisions of this section shall have effect subject to any directions of the Board varying the provisions thereof, and also to any agreement between an outgoing and an incoming incumbent notified to and approved by the Board, and in the construction of the said provisions the expression “outgoing incumbent” shall include the personal representatives of a deceased incumbent.

(4) The following subsection shall be substituted for subsection (3) of section thirty-one of the principal Measure :—

“(3) Provided always that this section shall not impose on any sequestrator or any incumbent any obligation to execute any repairs the cost of which exceeds the sums from whatever source derived for the time being standing to the credit of the repair account of the benefice, or, in the case of deferred repairs, the deferred repair account of the benefice, but so that in the case of an incumbent from whom any money is due to the Central Authority and payable to the said accounts or either of them the sums respectively actually standing to the credit of the said accounts or to the credit of the account to which money is due, as the case may be, shall be deemed for the purposes of this proviso to be increased by the amount of the money so due and payable.”

(5) The following subsection shall be substituted for subsections (6) and (7) of section thirty-one of the principal Measure :—

“(6) If the incumbent or the sequestrator of a benefice who is required under this Measure to execute repairs shall refuse or neglect to execute them, the Board may serve him with a notice requiring him to execute such repairs forthwith, and if at the expiration of one month from the date of such notice the default shall be continuing, the Board with the consent of the bishop may in its discretion execute such repairs or so much of them as the Board may think fit, and shall have all necessary rights of entry for that purpose, and shall without prejudice to any other remedy be entitled to recover as a debt from the incumbent or sequestrator in default the charges of any architect or surveyor incurred in consequence of the refusal or neglect of the incumbent or sequestrator.”

(6) Subsection (5) of section thirty-one of the principal Measure is hereby repealed.

11. The Central Authority may from time to time disburse from the repair account or the deferred repair account of a benefice such sums representing payments on account in respect of wages or other items requiring to be immediately provided for as a certificate of the surveyor (who may act on such information as he in the circumstances of the case considers sufficient) countersigned by the incumbent of the benefice or by the sequestrator or by the Board, whichever shall have executed the repairs, may certify to be reasonable and proper and immediately payable.

Cost of
repairs
(payments
on account)

12.—(1) The power conferred on the Central Authority by paragraph (iii) of subsection (1) of section thirty-three of the principal Measure shall be extended so as to authorise repayments thereunder to any diocesan body and any parochial church council who may have made such contributions as are referred to in that paragraph.

Disposal of
surplus
payments.

(2) The following paragraph shall be inserted immediately after paragraph (iii) of the said subsection :—

“(iv) it may be applied in repaying to the Central Authority the whole or any part of any grant made under the provisions of section forty-one or section forty-four of this Measure.”

Interim
repairs

13.—(1) The powers of ordering repairs required without delay in order to prevent further dilapidations conferred on a Diocesan Dilapidations Board by section thirty-six of the principal Measure may be exercised without a report from the surveyor being obtained in any case where the Board consider such report not necessary.

(2) The period of one year referred to in subsection (3) of section thirty-six of the principal Measure shall be construed to mean any period between the due date of any annual payment under an assessment and the due date of the next annual payment under the same assessment or the next succeeding assessment.

Charging the
revenues of a
benefice
(Application
of certain
provisions of
the Ecclesi-
astical
Dilapidations
Act, 1872).
35 & 36 Vict.
c. 96.

14. The provisions of sections one and two of the Ecclesiastical Dilapidations Act, 1872, applied by section thirty-eight of the principal Measure to charging assessments made thereunder shall be and be deemed always to have been the provisions of those sections relating to the extending of a term of repayment upon the appointment of a new incumbent and to the changing of the date of the annual payment under a mortgage.

Insurance
money if
buildings
destroyed
by fire
before
payment of
insurance
rate.

15. The following provisions shall have effect and shall be deemed always to have had effect in respect of the period between the passing of the principal Measure and the date upon which the buildings of a benefice become insured by the Central Authority under the provisions of section thirty-nine of the principal Measure :—

- (i) subject to the provisions of the next succeeding paragraph the repeal effected by the principal Measure of the provisions of sections fifty-four, fifty-five and fifty-six of the Ecclesiastical Dilapidations Act, 1871 (which sections relate to the insurance against loss or damage by fire of the

buildings of a benefice) shall not take effect until the expiration of the said period;

- (ii) any moneys paid under any insurance effected under the said provisions of the said Act shall be applied by the Central Authority as if they had been received by the Central Authority under section forty of the principal Measure, and the provisions of that section shall apply accordingly; and
- (iii) regulations prescribed under subsection (2) of section forty of the principal Measure may provide for the application of any moneys deemed to be a debt due from an incumbent to the Central Authority under subsection (4) of the said section.

16. The powers conferred on a Diocesan Dilapidations Board by section forty-six of the principal Measure shall be extended so as to enable the Board to make an order under the said section deferring the removal of a superfluous building in any case where the Board are of opinion that for any reason such order ought to be made.

Superfluous
buildings
(extension
of powers).

17. Section fifty-one of the principal Measure shall apply to any dangerous trees growing either on the glebe land of a benefice or in the churchyard, but so that—

Dangerous
trees.

- (i) in subsection (1) the words “and then only for the purpose of being actually applied in repairs to the buildings of the benefice” shall not apply to such trees;
- (ii) in any case where after payment of the costs and expenses of the felling of any dangerous trees growing on the glebe and of the sale thereof, if a sale can be effected, there shall be a loss, the Board shall have power to direct that such loss shall be borne by the repair account of the benefice; and
- (iii) the previous consent of the Board shall not be required to the felling of any tree which is in so dangerous a condition as to make it necessary that it should be felled forthwith.

Chancels. **18.** The following words shall be added at the end of subsection (2) of section fifty-two of the principal Measure :—

“ and also to provide a capital sum the income of which will be sufficient to insure the chancel for a sum adequate to reinstate the same in the event of its being destroyed by fire.”

Proof of orders, &c., of Diocesan Dilapidations Boards. **19.** Evidence of any order or resolution of a Diocesan Dilapidations Board or of any instrument framed by a Board for the purpose of carrying the principal Measure or any amendment thereof into effect, may be given by producing a copy of such order, resolution or instrument purporting to be signed by the secretary of the Board.

Duchy of Cornwall. **20.** The Third Schedule to the principal Measure shall have effect as if there were substituted for all words after the “ Duke of Cornwall ” the words—

“ or any person duly authorised to act on his behalf under the Duchy of Cornwall Management Act, 1863, including any persons having authority under section thirty-eight or section thirty-nine of the same statute to act in the name and on behalf of the Duke of Cornwall and any notice may be given to the Keeper of the Records of the Duchy.”

Transfer of documents. **21.—(1)** In any case where a Diocesan Dilapidations Board has in its possession any deeds or documents relating to a benefice outside its area, including a benefice which has ceased to be in its area, such Board shall deliver up such deeds or documents to the Diocesan Dilapidations Board in whose area such benefice is situate.

(2) If any question shall arise whether any deeds or documents ought to be delivered up under the provisions of this section, such question shall be decided by the Central Authority, whose decision shall be final.

Transitional provisions. **22.** The Central Authority may give such directions as in the opinion of the Central Authority may be required with regard to the transition from the provisions of the principal Measure to the same provisions as

amended by this Measure, and shall have power to determine whether any inspection or other proceeding pending at the passing of this Measure shall be concluded in accordance with the provisions of the principal Measure or of the same provisions as amended by this Measure, and generally to decide any question which may arise in connection with the said transition.

23.—(1) This Measure shall come into force on the appointed day. Commence-
ment.

(2) The appointed day shall be such day, not later than six months after the passing of this Measure, as the Archbishops of Canterbury and York shall by writing under their hands and archiepiscopal seals jointly determine.

(3) The determination of the appointed day under this section shall be notified by advertisement in the London Gazette.

24. This Measure may be cited as the Ecclesiastical Dilapidations (Amendment) Measure, 1929, and shall be construed as one with the principal Measure, and the principal Measure and this Measure may be cited together as the Ecclesiastical Dilapidations Measures, 1923 to 1929. Short title
and con-
struction.

25. The amendments set out in the Schedule to this Measure (being amendments which are consequential on the classification of repairs as immediate quinquennial and deferred repairs respectively or relate to matters of minor importance) shall be made in the principal Measure. Minor
amend-
ments.

SCHEDULE.

MINOR AMENDMENTS OF THE ECCLESIASTICAL DILAPIDATIONS MEASURE, 1923.

Provision amended.	Amendment.
Section 18 (3) -	There shall be substituted for the word "fourteen" the words "twenty-one."
Section 21 (5) (i)	The words "ordinary or structural" shall be repealed.

No. 3. *Ecclesiastical Dilapidations* 19 & 20 GEO. 5.
(Amendment) Measure, 1929.

Provision amended.	Amendment.
Section 22 (1) -	There shall be substituted for the words "ordinary repairs and immediate structural repairs" the words "the immediate repairs."
Section 26 (1) -	There shall be substituted for the words "as structural repairs under section 18 (1) (i) (b) of this Measure" the words "as deferred repairs." The proviso forming the second paragraph of the subsection shall be repealed.
Section 33 (1) -	The words "ordinary repairs or structural" shall be repealed.
Section 35 (1) - Section 36 (2) -	{ There shall be substituted in each subsection for the words "structural repairs" the words "deferred repairs or repairs which would in the opinion of the Board be classified as deferred repairs in a report made by a surveyor under this Measure."
Section 43 (1) -	There shall be substituted for the words "in respect to any payment required by an assessment" the words "to the Central Authority."
Section 49 (2) -	The words "within one month after the sending of the report" shall be inserted after the word "may."
Section 51 (4) -	The words "and applied and disposed of by the Central Authority as money in their hands so appropriated should by law or under the rules of the Central Authority be applied and disposed of; or" shall be inserted at the end of paragraph (iii). After paragraph (iii) the following paragraph shall be added :— " (iv) applied in improving any buildings belonging to the benefice."